

PEARSON SPECTER LITT LLP

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CLIENT / CASE INTAKE FORM

Form No.: PSL-CI-2024-0047

CONFIDENTIAL

Date Received: March 3, 2024

DOB unclear — confirm w/ client!

File / Matter No.:

Client Name: Harrington, D.W.

Date of Birth: 09 / 14 / 197_ [smudged]

Address: 4412 Lexington Ave, Apt 7B, New York NY

file # TBD — waiting on conflicts

Phone (Primary): (917) 555-0284

Phone (Alt.): N/A

Email: d.harrington@hrcapital.net

Opposing Party: Westfield Properties LLC

Nature of Matter: Commercial Lease Dispute / Breach of Contract

Referral Source:

Assigned Attorney: J. L. Specter

Paralegal Assigned: Zane

Retainer Received: Yes ☒ No ☐

conflict check — Mike to review by Fri

Retainer Amount: \$15,000.00

Do NOT bill until cleared!

Conflict Check Done: Yes ☐ No ☒ PENDING

Summary of Matter (initial intake notes):

Client D.W. Harrington (via HRC Capital) alleges Westfield Properties LLC failed to honour lease renewal option exercised in writing on 01/15/2024. Client claims 5-yr renewal at \$42/sqft was contractually locked per Lease Addendum C (executed 2019). Westfield disputes addendum's validity — says unsigned copy only. Client has original signed copy (to be collected). Potential damages: ~\$1.2M over lease term. Also possible wrongful eviction claim if tenant removed before resolution.

* ask for addendum C copy at first meeting

WITNESS STATEMENT — PRELIMINARY NOTES

Matter: Harrington v. Westfield Properties LLC | Date: March 5, 2024
Prepared by: R. Zane (Paralegal) | Reviewed by: [PENDING]

DRAFT

Marcus T. Webb

DISPUTED

Property Manager, Westfield Properties LLC

Contact: (212) 555-0344 / m.webb@westfieldprop.com

Availability: Available Tues/Thurs afternoons only (per assistant)

Key notes:

- Was present at lease renewal negotiation meeting Jan 8 2024.
- Claims addendum C was 'discussed but never finalised'.
- Contradicts client's account — says no binding renewal agreed.
- May have relevant emails — subpoena if uncooperative.

[HW note]: Webb seemed evasive on call — worth pressing.

Sandra K. Obi

COOPERATIVE

Former Executive Assistant, HRC Capital

Contact: sobi.personal@gmail.com | cell: (646) 555-0917

Availability: LEFT company Feb 2024 — now freelance

Key notes:

- Present at signing of original lease in 2019.
- May have retained personal copies of executed addenda.
- Willing to cooperate — told client she 'remembers signing'.
- Location: Brooklyn, NY — available for deposition.

IMPORTANT: get affidavit before she changes her mind.

Unknown / Illegible

UNVERIFIED

[Scanned note — name unclear, possibly 'J. Morales' or 'J. Morel']

Contact: [phone number illegible on scanned card]

Availability: Unknown

Key notes:

- Referenced in client's handwritten notes as '3rd party witness at signing'.
- No further info available — client to clarify.

Follow up: get client to ID 'Morales/Morel' ASAP

DOCUMENT COLLECTION CHECKLIST

Matter: Harrington v. Westfield | Updated: March 6, 2024 (handwritten additions)

#	Document	Status	Notes
1	Original Lease Agreement (2019)	RECEIVED	Client provided — scanned copy in file
2	Lease Addendum C — signed original	OUTSTANDING	Client claims original exists — to collect
3	Lease Addendum C — unsigned copy (Westfield)	RECEIVED	Provided by opposing counsel 02/28/24
4	Lease Renewal Notice (01/15/2024)	RECEIVED	Email + certified mail confirmation
5	Westfield Response to Renewal Notice	RECEIVED	Letter dated 01/29/2024
6	Correspondence re: disputed addendum	PARTIAL	3 of ~9 emails obtained — more via subpoena
7	Property Inspection Reports	N/A	Not applicable to this matter
8	Retainer Agreement — signed	RECEIVED	Signed 03/03/2024
9	Conflict Check Form	OUTSTANDING	Pending — M. Ross to complete
10	Engagement Letter	OUTSTANDING	Draft prepared — not yet sent to client
11	Expert Valuation (lease market rate)	NOT STARTED	May be needed if matter proceeds to trial
12	Court Filing — Complaint	NOT STARTED	Depends on outcome of settlement discussion

** Addendum C original = KEY — entire case turns on this
subpoena Westfield email archive if needed
talk to Sandra Obi re: signing before anyone else gets to her*

R. Zane

Prepared by (signature)

[not yet signed]

Supervising Attorney (signature)